



Henkel - Olaplex

MN-80016

Phase 1 Determination

Acquisition may be put into effect

20 June 2026

1. Determination and statement of reasons

Notified acquisition	Henkel AG & Co. KGaA's (Henkel) acquisition of Olaplex Holdings, Inc. and its subsidiaries (together, Olaplex) (the Acquisition)
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	The acquirer, Henkel, is a German public company listed on the Frankfurt Stock Exchange. In Australia, Henkel is active in the supply of hair care and hair styling products to hair professionals as well as to mass-market retailers, including its Schwarzkopf brand and Schwarzkopf sub brands, BC Bonacure, BLONDME, Chroma ID, Fibre Clinix, Fibreplex, got2b, Indola, Natural Styling, Oil Ultime, OSiS+, Palette, Session Label, Silhouette and TBH. Henkel also sells adhesive technologies in Australia. The target, Olaplex, is a Delaware-registered company listed on the Nasdaq Global Select Market and headquartered in New York. In Australia, Olaplex primarily supplies premium hair products to online retailers, specialty retailers and hair professionals.
Overlap and relationship between the parties	Henkel and Olaplex overlap in the supply of hair care products to professional and retail customers.
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (ACCC) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers. For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form, information from third parties, and publicly available information. The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition is unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC makes the following findings. • The market share aggregation resulting from the Acquisition is estimated to be low. • The merged firm would likely continue to face competition from multiple alternative suppliers of hair care products to both professional and retail customers in Australia.
Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are

	dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.
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**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**